

(Revised Form of Blue Slip)

ORDER OF THE COURT

IN THE LAHORE HIGH COURT BAHAWALPUR BENCH
BAHAWALPUR

HON'BLE MR. JUSTICE MUHAMMAD WAHEED KHAN

Crl. Revision No.114/2019

Fida Hussain

Versus

The State etc.

Date of decision:-

03-11-2020

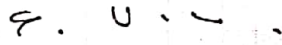
a) Judgment approved for reporting

✓
Yes / No

b) Whether any comment upon the conduct of the Judicial Officer or quality of the impugned judgment is desired to be made.

Yes / No

(In case the answer is in the affirmative, separate confidential note may be sent to the Registrar drawing his attention to the particular aspect)


(Muhammad Waheed Khan)
Judge

Note:-

1. If the slip is used, the Reader must attach it on top of first page of the judgment.
2. Reader may ask the Judge writing the judgment whether the judgment is to be approved for reporting; or any comment is to be made about the Judicial Officer/quality of judgment.
3. This slip is only to be used when some action is to be taken.

JUDGMENT SHEET
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
(JUDICIAL DEPARTMENT)

Crl. Revision No.114 of 2019

Fida Hussain v. The State, etc.

Date of hearing: 03.11.2020

Petitioner by: Syed Aasim Ali Bukhari, Advocate.

Respondent No.3 by: Mr. Ghazanfar Ali Khan, Advocate.

State by: Malik Muhammad Latif, Deputy Prosecutor General.

JUDGMENT

MUHAMMAD WAHEED KHAN, J.- I intend to decide the instant criminal revision petition as well as Crl. Revision Petition No.188 of 2019 through this single judgment as the similar question of law and facts are involved therein."

2. The petitioner/convict was booked in two different FIRs i.e. FIR No.695/2008, registered under Sections 324, 34, 337-F(vi) and 337-D PPC at Police Station Minchinabad and FIR No.70/09 dated 09.02.2011, registered under Sections 324, 109 and 34 PPC at Police Station Minchinabad. On conclusion of trial, he was convicted and sentenced by the learned Magistrate Section-30, Minchinabad vide judgments dated 09.02.2011 in various offences like 337-F(vi), 337-D PPC etc. The petitioner/convict preferred two appeals before the learned Additional Sessions Judge, Minchinabad which were admitted for regular hearing and during the pendency of his appeals the sentence awarded to the petitioner/convict was suspended and he was admitted to bail on 23.07.2011. When his appeals came up for hearing, the petitioner/convict and his counsel remained absent from the court. The learned Additional

Sessions Judge dealt with the appeals filed by the petitioner/convict vide order dated 03.10.2011 as under:-

“Muhammad Siddique Sabri, S.I P/S Minchinabad has appeared before the court with un-executed arrest warrant with the report that the convict is a dangerous criminal being involved in multiple crimes who has absconded in order to avoid legal consequences. In this view of the matter the instant appeal is dismissed for non-prosecution. Record of appeal be consigned to record room and that of learned lower court be remitted immediately with the direction to execute the conviction order. At the same time surety shall be proceeded against under section 514 Cr.P.C. All the relevant record to this affect be also sent to the learned lower court for necessary legal action under section 514 Cr.P.C”

Thereafter, the petitioner/convict opted to file an application for restoration of his appeals and the same were dismissed vide order dated 20.05.2019 by the learned Additional Sessions Judge.

3. The learned counsel for the petitioner contends that impugned orders of learned appellate court are against the basic settled proposition that a criminal appeal cannot be dismissed for non-prosecution and the learned trial court while passing the impugned orders, has committed material irregularity and the appeals filed by the convict ought to have been decided on merits of the case.

4. The learned counsel, appearing on behalf of respondent No.3/complainant as well as learned Deputy Prosecutor General has frankly conceded to the legal proposition and opted not to oppose these revision petitions.

5. After hearing the learned counsel for the parties and having gone through the relevant law, there is no cavil to the proposition that once a criminal appeal is admitted for regular hearing by the appellate court it must be decided on merits and could not be dismissed for non-prosecution and there is no concept of dismissal of appeal for non-prosecution in the Code of Criminal Procedure, 1898 (hereinafter called as ‘the Code’). Section 423 of the Code deals with the procedure of disposing of the criminal appeal which reads as under:-

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"Section 423(1). Powers of Appellate Court in disposing of appeal. (1) *The Appellate Court shall then send for the record of the case, if such record is not already in Court. After perusing such record and hearing the appellant or his pleader, if he appears, and the Public Prosecutor, if he appears, and, in case of an appeal under section 411-A, sub-section (2) or section 417, the accused, if he appears, the Court may if it considers that there is no sufficient ground for interfering, dismiss the appeal or may:*

(a) *In an appeal from an order of acquittal, reverse such order and direct that further inquiry be made, or that the accused be retired or (sent for trial to the Court of Session or the High Court), as the case may be or find him guilty and pass sentence on him according to law;*

(b) *In an appeal from a conviction, (1) reverse the finding and sentence, and acquit or discharge the accused, or order him to be retired by a Court of competent jurisdiction subordinate to such Appellate Court or sent for trial, or (2) alter the finding, maintaining the sentence, or, with or without altering the finding reduce the sentence, or, (3) with or without such reduction and with or without altering the finding, alter the nature of the sentence but, subject to the provisions of the section 106, sub-section (3) not so as to enhance the same;*

(c) *In an appeal from any other order, alter or reverse such order;*

(d) *Make any amendment or any consequential or incidental order that may be just or proper."*

This principle of deciding the appeal on merit of the case has been reiterated by the august Supreme Court of Pakistan in cases of Muhammad Ashiq Faqir v. The State (PLD 1970 Supreme Court 177), Muhammad Bakhsh v. The State (1986 SCMR 59) and in the judgment of this Court passed in case of Ghulam Muhammad v. The State (PLD 1960(W.P) Lahore 11).

6. Section 421 of the Code deals with the summary dismissal of the appeal. In this provision of law the appellate court is equipped with the power of summary dismissal of the appeal when it considers that no sufficient ground for interfering is available but even in this provision a proviso has been added in its sub-section (1) which

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bound down the court that no appeal presented under Section 419 shall be dismissed unless the appellant or his pleader had a reasonable opportunity of being heard in support of the same.

7. Part 'C' of Chapter 25 of Volume III of High Court Rules and Orders deals with the procedure in hearing criminal appeals and rule 5 of the same reads as under:-

"5. A criminal appeal must be disposed of on its merits as it cannot be dismissed in default."

8. However, in the case of *Ikramullah and others v. The State* (2015 SCMR 1002) the Hon'ble Supreme Court of Pakistan has deviated from this principle to some extent while observing as under:-

"A report dated 11.12.2014 has been received from the Superintendent, Central Prison, Bannu informing that Adil Nawab appellant had escaped from the said jail during the night between 14/15-4-2012 and he has become a fugitive from law ever since. The law is settled by now that a fugitive from law loses his right of audience before a court. This appeal is, therefore, dismissed on account of the above mentioned conduct of the appellant with a clarification that if the appellant is recaptured by the authorities or he surrenders to custody then he may apply before this Court seeking resurrection of this appeal." (Underline is provided for emphasis).

Meaning thereby, that if the appellant becomes fugitive from law and opted not to appear before the appellate court to pursue his/her appeal then the same could be dismissed on account of his conduct but in that eventuality the court has to clarify in his order/judgment that if the appellant is recaptured or he surrenders to custody then he may apply to the court seeking resurrection of his/her appeal.

9. In view of the law referred above, I am of the considered view that impugned orders dated 03.10.2011 and 20.05.2019 passed by the learned Additional Sessions Judge, Minchinabad are not warranted by law, therefore, by allowing these revision petitions, the impugned

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orders are set aside and the matters are remanded back to the learned appellate court for decision of appeals afresh on merits, strictly in accordance with law.

محمد واہد خان
(Muhammad Waheed Khan)
Judge

APPROVED FOR REPORTING:

محمد واہد خان
JUDGE.

Ansar*